

## Part II: Citizenship

- **Article 5: Citizenship at the commencement of the Constitution**
  - **Gist:** This article defines who was considered a citizen of India when the Constitution came into effect on January 26, 1950.
  - **Detailed Explanation:** To be an Indian citizen under Article 5, a person had to have their domicile (residence) in India and meet one of three conditions: they were born in India, at least one of their parents was born in India, or they had been living in India for at least five years before the Constitution's commencement.
- **Article 6: Rights of citizenship of certain persons who have migrated to India from Pakistan**
  - **Gist:** This article lays out the rules for people who moved from Pakistan to India to become Indian citizens.
  - **Detailed Explanation:** A person who migrated from Pakistan to India could be considered a citizen if they, their parents, or their grandparents were born in India (as defined by the Government of India Act, 1935). There were two scenarios: if they migrated before July 19, 1948, and were an ordinary resident, they were considered a citizen. If they migrated on or after that date, they had to register as a citizen after residing in India for at least six months.
- **Article 7: Rights of citizenship of certain migrants to Pakistan**
  - **Gist:** This article deals with the citizenship of people who moved from India to Pakistan after March 1, 1947.
  - **Detailed Explanation:** Generally, anyone who migrated to Pakistan after this date was not considered an Indian citizen. However, an exception was made for those who returned to India with a permit for resettlement or permanent return. These individuals were treated as if they had migrated after July 19, 1948, and had to register to regain their citizenship.
- **Article 8: Rights of citizenship of certain persons of Indian origin residing outside India**
  - **Gist:** This article outlines how people of Indian origin living abroad could become Indian citizens.
  - **Detailed Explanation:** A person of Indian origin residing outside India could be considered a citizen if they, their parents, or their grandparents were born in India (as defined by the 1935 Act) and they registered as a citizen with an Indian diplomatic or consular representative in their country of residence.
- **Article 9: Persons voluntarily acquiring citizenship of a foreign State not to be citizens**
  - **Gist:** This article states that if an Indian citizen voluntarily becomes a citizen of another country, they lose their Indian citizenship.
  - **Detailed Explanation:** This article reinforces the principle that India does not

allow dual citizenship. If an individual chooses to acquire foreign citizenship, their Indian citizenship is automatically terminated.

- **Article 11: Parliament to regulate the right of citizenship by law**
  - **Gist:** This article gives Parliament the power to make laws regarding citizenship.
  - **Detailed Explanation:** Article 11 grants the Indian Parliament full authority to legislate on all matters related to the acquisition and termination of citizenship. This led to the enactment of the Citizenship Act, 1955, and its subsequent amendments.

## Part III: Fundamental Rights

- **Article 12: Definition of "the State"**
  - **Gist:** This article defines what "the State" means in the context of fundamental rights.
  - **Detailed Explanation:** "The State" includes the Government and Parliament of India, the governments and legislatures of the states, and all local or other authorities within India or under the control of the Indian government. This broad definition ensures that fundamental rights can be enforced against a wide range of public bodies.
- **Article 13: Laws inconsistent with or in derogation of the fundamental rights**
  - **Gist:** This article establishes the supremacy of fundamental rights over all other laws.
  - **Detailed Explanation:** Article 13 declares that any law in force before the Constitution that is inconsistent with fundamental rights is void. It also prohibits the State from making any law that takes away or abridges these rights.
- **Article 14: Equality before law**
  - **Gist:** This article guarantees to every person equality before the law and equal protection of the laws.
  - **Detailed Explanation:** This article has two parts: "equality before the law," which means no one is above the law, and "equal protection of the laws," which means that people in similar circumstances should be treated alike. It allows for "reasonable classification" but prohibits arbitrariness.
- **Article 15: Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth**
  - **Gist:** This article prohibits the state from discriminating against any citizen on the grounds of religion, race, caste, sex, or place of birth.
  - **Detailed Explanation:** Article 15 ensures that no citizen is denied access to public places or subjected to any disability or restriction on these grounds. It also includes provisions that allow the state to make special provisions for

women, children, and socially and educationally backward classes, as well as for economically weaker sections.

- **Article 16: Equality of opportunity in matters of public employment**

- **Gist:** This article guarantees equality of opportunity for all citizens in matters of public employment.
- **Detailed Explanation:** Article 16 ensures that there is no discrimination in public employment based on religion, race, caste, sex, descent, place of birth, or residence. It also allows for reservation in public employment for backward classes.

- **Article 17: Abolition of Untouchability**

- **Gist:** This article abolishes the practice of "untouchability" in any form.
- **Detailed Explanation:** Article 17 makes the enforcement of any disability arising out of untouchability a punishable offense. This is a crucial provision for social reform and equality.

- **Article 18: Abolition of titles**

- **Gist:** This article abolishes all titles except for military and academic distinctions.
- **Detailed Explanation:** The State is prohibited from conferring any titles, and citizens are prohibited from accepting titles from foreign states. This is to ensure social equality and prevent the creation of a class of nobility.

- **Article 19: Protection of certain rights regarding freedom of speech, etc.**

- **Gist:** This article, often called the "Charter of Liberty," guarantees six fundamental freedoms to all citizens.
- **Detailed Explanation:** These freedoms are:
  - Freedom of speech and expression<sup>1</sup>
  - Freedom to assemble peaceably and without arms<sup>2</sup>
  - Freedom to form associations or unions<sup>3</sup>
  - Freedom to move freely throughout the territory of India<sup>4</sup>
  - Freedom to reside and settle in any part of the territory of India<sup>5</sup>
  - Freedom to practice any profession, or to carry on any occupation, trade, or business.These rights are not absolute and can be subject to reasonable restrictions.

- **Article 20: Protection in respect of conviction for offences**

- **Gist:** This article provides protection to individuals against excessive and arbitrary punishment for crimes.

- **Detailed Explanation:** It includes three main protections: no one can be convicted for an act that was not an offense at the time it was committed (no ex-post-facto law), no one can be prosecuted and punished for the same offense more than once (no double jeopardy), and no one can be compelled to be a witness against themselves (no self-incrimination).
- **Article 21: Protection of life and personal liberty**
  - **Gist:** This article declares that no person shall be deprived of their life or personal liberty except according to the procedure established by law.
  - **Detailed Explanation:** This is one of the most important fundamental rights and has been interpreted broadly by the Supreme Court to include the right to live with human dignity, the right to a clean environment, the right to livelihood, the right to privacy, and many other rights that are essential for a meaningful life.
- **Article 21A: Right to education**
  - **Gist:** This article makes free and compulsory education a fundamental right for all children between the ages of 6 and 14.
  - **Detailed Explanation:** Added by the 86th Amendment in 2002, this article obligates the State to provide free and compulsory education to all children in this age group. This led to the enactment of the Right to Education Act, 2009.
- **Article 22: Protection against arrest and detention in certain cases**
  - **Gist:** This article provides certain safeguards to individuals who are arrested or detained.
  - **Detailed Explanation:** It ensures that an arrested person is informed of the grounds of their arrest, has the right to consult a legal practitioner, and is produced before a magistrate within 24 hours of arrest. These protections are not available to enemy aliens or those arrested under preventive detention laws.
- **Article 23: Prohibition of traffic in human beings and forced labour**
  - **Gist:** This article prohibits human trafficking and all forms of forced labor.
  - **Detailed Explanation:** It makes these practices punishable offenses and is a crucial provision for protecting human dignity and preventing exploitation.
- **Article 24: Prohibition of employment of children in factories, etc.**
  - **Gist:** This article prohibits the employment of children below the age of 14 in any factory, mine, or other hazardous employment.
  - **Detailed Explanation:** This is a key provision for the protection of children's rights and ensuring their well-being.
- **Article 25: Freedom of conscience and free profession, practice and propagation of religion**
  - **Gist:** This article guarantees to every person the freedom of conscience and the right to profess, practice, and propagate religion.
  - **Detailed Explanation:** This freedom is subject to public order, morality, and

health. It also allows the state to regulate secular activities associated with religious practices and to provide for social welfare and reform.

- **Article 26: Freedom to manage religious affairs**
  - **Gist:** This article gives every religious denomination the right to establish and maintain institutions for religious and charitable purposes, manage its own affairs in matters of religion, own and acquire property, and administer such property in accordance with the law.
  - **Detailed Explanation:** This article provides autonomy to religious groups in managing their affairs, subject to public order, morality, and health.
- **Article 27: Freedom as to payment of taxes for promotion of any particular religion**
  - **Gist:** This article prohibits the state from compelling any person to pay taxes for the promotion or maintenance of any particular religion.
  - **Detailed Explanation:** This is a key aspect of India's secularism, ensuring that public funds are not used to promote any specific religion.
- **Article 28: Freedom as to attendance at religious instruction or religious worship in certain educational institutions**
  - **Gist:** This article provides that no religious instruction shall be provided in any educational institution wholly maintained out of state funds.
  - **Detailed Explanation:** In educational institutions that are recognized by the state or receive aid from it, no person can be required to attend any religious instruction or worship without their consent (or their guardian's consent if they are a minor).
- **Article 29: Protection of interests of minorities**
  - **Gist:** This article protects the cultural and educational rights of minorities.
  - **Detailed Explanation:** Any section of citizens with a distinct language, script, or culture has the right to conserve it. It also states that no citizen shall be denied admission into any educational institution maintained by the state or receiving aid out of state funds on grounds only of religion, race, caste, or language.
- **Article 30: Right of minorities to establish and administer educational institutions**
  - **Gist:** This article gives all minorities, whether based on religion or language, the right to establish and administer educational institutions of their choice.
  - **Detailed Explanation:** The state is prohibited from discriminating against any educational institution on the ground that it is under the management of a minority when granting aid.
- **Article 31-C: Saving of laws giving effect to certain directive principles**
  - **Gist:** This article provides that laws made to implement the directive principles in Article 39(b) and (c) cannot be challenged on the ground that they violate the fundamental rights under Articles 14 and 19.

- **Detailed Explanation:** This article was introduced to give primacy to certain socio-economic goals over some fundamental rights, particularly in matters of economic justice and preventing the concentration of wealth.

## Part IV: Directive Principles of State Policy

- **Article 36: Definition of "the State"**
  - **Gist:** This article states that the definition of "the State" in Part IV is the same as in Part III (Article 12).
  - **Detailed Explanation:** This ensures that the obligations outlined in the Directive Principles apply to the same public bodies as the restrictions imposed by the Fundamental Rights.
- **Article 37: Application of the principles contained in this Part**
  - **Gist:** This article states that the Directive Principles are not enforceable by any court, but they are fundamental in the governance of the country.
  - **Detailed Explanation:** While not legally justiciable, these principles are meant to be guiding ideals for the state when making laws and policies.
- **Article 38: State to secure a social order for the promotion of welfare of the people**
  - **Gist:** This article directs the state to strive to promote the welfare of the people by securing a social order in which justice—social, economic, and political—informs all institutions of national life.
  - **Detailed Explanation:** It also directs the state to minimize inequalities in income, status, facilities, and opportunities.
- **Article 39: Certain principles of policy to be followed by the State**
  - **Gist:** This article lays down several important principles for the state to follow in its policies.
  - **Detailed Explanation:** These include ensuring an adequate means of livelihood for all citizens, distributing material resources for the common good, preventing the concentration of wealth, ensuring equal pay for equal work, protecting the health of workers, and providing opportunities for the healthy development of children.
- **Article 39A: Equal justice and free legal aid**
  - **Gist:** This article directs the state to ensure that the legal system promotes justice on the basis of equal opportunity and to provide free legal aid to ensure that justice is not denied to any citizen due to economic or other disabilities.
  - **Detailed Explanation:** This led to the enactment of the Legal Services Authorities Act, 1987.
- **Article 40: Organisation of village panchayats**
  - **Gist:** This article directs the state to organize village panchayats and empower

them to function as units of self-government.

- **Detailed Explanation:** This Gandhian principle was a significant step towards democratic decentralization and was given constitutional status by the 73rd and 74th Amendments.
- **Article 41: Right to work, to education and to public assistance in certain cases**
  - **Gist:** This article directs the state to make effective provisions for securing the right to work, to education, and to public assistance in cases of unemployment, old age, sickness, and disablement.
  - **Detailed Explanation:** This is a key social security provision that aims to provide a safety net for vulnerable sections of society.
- **Article 42: Provision for just and humane conditions of work and maternity relief**
  - **Gist:** This article directs the state to make provisions for securing just and humane conditions of work and for maternity relief.
  - **Detailed Explanation:** This has led to the enactment of various labor laws, including the Maternity Benefit Act.
- **Article 43: Living wage, etc., for workers**
  - **Gist:** This article directs the state to secure a living wage, a decent standard of life, and full enjoyment of leisure and social and cultural opportunities for all workers.
  - **Detailed Explanation:** This principle aims to ensure that workers are not just paid a minimum wage for survival but a wage that allows for a decent quality of life.
- **Article 43A: Participation of workers in management of industries**
  - **Gist:** This article directs the state to take steps to secure the participation of workers in the management of industries.
  - **Detailed Explanation:** This is a socialistic principle aimed at promoting industrial democracy.
- **Article 43B: Promotion of co-operative societies**
  - **Gist:** This article directs the state to promote voluntary formation, autonomous functioning, democratic control, and professional management of co-operative societies.
  - **Detailed Explanation:** This was added by the 97th Amendment in 2011 to strengthen the co-operative movement in the country.
- **Article 44: Uniform civil code for the citizens**
  - **Gist:** This article directs the state to endeavor to secure for all citizens a uniform civil code throughout the territory of India.
  - **Detailed Explanation:** This is a controversial and yet-to-be-implemented principle that aims to replace the personal laws based on religion with a single set of laws governing matters like marriage, divorce, inheritance, and adoption for all citizens.
- **Article 45: Provision for free and compulsory education for children**



- **Gist:** This article, as amended by the 86th Amendment, directs the state to provide early childhood care and education for all children until they complete the age of six years.
- **Detailed Explanation:** The original Article 45 provided for free and compulsory education for all children up to the age of 14, which has now become a fundamental right under Article 21A.
- **Article 46: Promotion of educational and economic interests of Scheduled Castes, Scheduled Tribes and other weaker sections**
  - **Gist:** This article directs the state to promote the educational and economic interests of the weaker sections of the people, particularly the Scheduled Castes and Scheduled Tribes, and to protect them from social injustice and all forms of exploitation.
  - **Detailed Explanation:** This is a key provision that provides the constitutional basis for reservation policies and other affirmative action measures.
- **Article 47: Duty of the State to raise the level of nutrition and the standard of living and to improve public health**
  - **Gist:** This article directs the state to raise the level of nutrition and the standard of living of its people and to improve public health. It also directs the state to bring about the prohibition of intoxicating drinks and drugs that are injurious to health.
  - **Detailed Explanation:** This principle has been the basis for various public health programs and policies, including those related to food security and prohibition.
- **Article 48: Organisation of agriculture and animal husbandry**
  - **Gist:** This article directs the state to organize agriculture and animal husbandry on modern and scientific lines and to take steps for preserving and improving breeds and prohibiting the slaughter of cows, calves, and other milch and draught cattle.
  - **Detailed Explanation:** This principle has both economic and cultural significance and has been the basis for laws banning cow slaughter in several states.
- **Article 48A: Protection and improvement of environment and safeguarding of forests and wild life**
  - **Gist:** This article directs the state to protect and improve the environment and to safeguard the forests and wildlife of the country.
  - **Detailed Explanation:** Added by the 42nd Amendment, this principle reflects the growing importance of environmental protection and has been used by the judiciary to expand the scope of the right to life under Article 21.
- **Article 49: Protection of monuments and places and objects of national importance**
  - **Gist:** This article directs the state to protect every monument or place or object



of artistic or historic interest, declared by or under law made by Parliament to be of national importance, from spoliation, disfigurement, destruction, removal, disposal or export, as the case may be.

- **Detailed Explanation:** This principle is aimed at preserving the cultural heritage of the country.
- **Article 50: Separation of judiciary from executive**
  - **Gist:** This article directs the state to take steps to separate the judiciary from the executive in the public services of the state.
  - **Detailed Explanation:** This is a crucial principle for ensuring the independence of the judiciary and the rule of law.
- **Article 51: Promotion of international peace and security**
  - **Gist:** This article directs the state to promote international peace and security, maintain just and honorable relations between nations, foster respect for international law and treaty obligations, and encourage the settlement of international disputes by arbitration.
  - **Detailed Explanation:** This principle reflects India's commitment to a peaceful and just international order.

## Part IVA: Fundamental Duties

- **Article 51A: Fundamental duties**
  - **Gist:** This article lays down a set of fundamental duties for every citizen of India.
  - **Detailed Explanation:** These duties, added by the 42nd Amendment, include abiding by the Constitution, cherishing the noble ideals of the freedom struggle, upholding the sovereignty and integrity of India, promoting harmony, protecting the environment, developing a scientific temper, and striving for excellence. A new duty was added by the 86th Amendment for parents or guardians to provide educational opportunities for their children between the ages of 6 and 14.

## Part V: The Union

- **Article 52: The President of India**
  - **Gist:** This article states that there shall be a President of India.
  - **Detailed Explanation:** This establishes the office of the President as the head of the Indian state.
- **Article 53: Executive power of the Union**
  - **Gist:** This article vests the executive power of the Union in the President.
  - **Detailed Explanation:** The executive power is to be exercised by the President

either directly or through officers subordinate to him in accordance with the Constitution.

- **Article 54: Election of President**

- **Gist:** This article lays out the composition of the electoral college for the election of the President.
- **Detailed Explanation:** The electoral college consists of the elected members of both Houses of Parliament and the elected members of the Legislative Assemblies of the States.

- **Article 58: Qualifications for election as President**

- **Gist:** This article specifies the qualifications required to be elected as President of India.
- **Detailed Explanation:** A person must be a citizen of India, have completed the age of 35 years, be qualified for election as a member of the Lok Sabha, and not hold any office of profit.

- **Article 60: Oath or affirmation by the President**

- **Gist:** This article prescribes the oath that the President takes before entering office.
- **Detailed Explanation:** The President swears to faithfully execute the office, and to preserve, protect, and defend the Constitution and the law.

- **Article 61: Procedure for impeachment of the President**

- **Gist:** This article lays down the procedure for the impeachment of the President for violation of the Constitution.
- **Detailed Explanation:** Impeachment proceedings can be initiated by either House of Parliament. A resolution for impeachment must be passed by a majority of not less than two-thirds of the total membership of the House.

- **Article 71: Matters relating to, or connected with, the election of a President or Vice-President**

- **Gist:** This article gives the Supreme Court the exclusive jurisdiction to inquire into and decide all doubts and disputes arising out of the election of the President or Vice-President.
- **Detailed Explanation:** The decision of the Supreme Court in such matters is final.

- **Article 74: Council of Ministers to aid and advise President**

- **Gist:** This article states that there shall be a Council of Ministers with the Prime Minister at the head to aid and advise the President, who shall act in accordance with such advice.
- **Detailed Explanation:** The President may require the Council of Ministers to reconsider their advice, but is bound to act in accordance with the advice tendered after such reconsideration.

- **Article 75: Other provisions as to Ministers**

- **Gist:** This article deals with the appointment, tenure, responsibility, and other

provisions related to the Prime Minister and other ministers.

- **Detailed Explanation:** The Prime Minister is appointed by the President, and other ministers are appointed by the President on the advice of the Prime Minister. The Council of Ministers is collectively responsible to the Lok Sabha.
- **Article 123: Power of President to promulgate Ordinances during recess of Parliament**
  - **Gist:** This article empowers the President to issue Ordinances when both Houses of Parliament are not in session and immediate action is required.
  - **Detailed Explanation:** An Ordinance has the same force and effect as an Act of Parliament but must be laid before both Houses of Parliament when they reassemble and ceases to operate after six weeks from the date of reassembly if not approved.

## Part VI: The States

- **Article 215: High Courts to be courts of record**
  - **Gist:** This article makes every High Court a court of record.
  - **Detailed Explanation:** As a court of record, a High Court has the power to punish for its own contempt.

## Part XVI: Special Provisions Relating to Certain Classes

- **Article 335: Claims of Scheduled Castes and Scheduled Tribes to services and posts**
  - **Gist:** This article provides that the claims of the members of the Scheduled Castes and Scheduled Tribes shall be taken into consideration, consistent with the maintenance of efficiency of administration, in the making of appointments to services and posts in connection with the affairs of the Union or of a State.
  - **Detailed Explanation:** This article balances the need for affirmative action with the need for administrative efficiency.
- **Article 338: National Commission for Scheduled Castes**
  - **Gist:** This article provides for a National Commission for Scheduled Castes to investigate and monitor all matters relating to the safeguards provided for them under the Constitution.
  - **Detailed Explanation:** The Commission has the powers of a civil court while inquiring into specific complaints.
- **Article 338A: National Commission for Scheduled Tribes**
  - **Gist:** This article provides for a National Commission for Scheduled Tribes with similar functions and powers as the National Commission for Scheduled Castes.
  - **Detailed Explanation:** This Commission was established by the 89th

Amendment in 2003.

- **Article 338B: National Commission for Backward Classes**
  - **Gist:** This article provides for a National Commission for Backward Classes with similar functions and powers as the other two commissions.
  - **Detailed Explanation:** This Commission was given constitutional status by the 102nd Amendment in 2018.
- **Article 340: Appointment of a Commission to investigate the conditions of backward classes**
  - **Gist:** This article empowers the President to appoint a commission to investigate the conditions of socially and educationally backward classes and to make recommendations for improving their conditions.
  - **Detailed Explanation:** This article led to the appointment of the Kaka Kalelkar Commission and the B.P. Mandal Commission.

## Part XVIII: Emergency Provisions

- **Article 352: Proclamation of Emergency**
  - **Gist:** This article empowers the President to declare a National Emergency if the security of India or a part of it is threatened by war, external aggression, or armed rebellion.
  - **Detailed Explanation:** During a National Emergency, the federal structure of the country can be converted into a unitary one, and the fundamental rights of citizens can be suspended (except for Articles 20 and 21).
- **Article 358: Suspension of provisions of Article 19 during emergencies**
  - **Gist:** This article provides for the automatic suspension of the six fundamental freedoms under Article 19 when a National Emergency is declared on the grounds of war or external aggression.
  - **Detailed Explanation:** These freedoms are restored once the emergency is lifted.
- **Article 359: Suspension of the enforcement of the rights conferred by Part III during emergencies**
  - **Gist:** This article empowers the President to suspend the right to move any court for the enforcement of the fundamental rights (except Articles 20 and 21) during a National Emergency.
  - **Detailed Explanation:** This means that while the fundamental rights themselves are not suspended, their enforcement can be.

## Part XIX: Miscellaneous

- **Article 366: Definitions**

- **Gist:** This article provides definitions for various terms used in the Constitution.
- **Detailed Explanation:** Clauses (24) and (25) of this article define "Scheduled Castes" and "Scheduled Tribes," respectively.